
Central Valley Regional Water Quality Control Board

28 December 2016

Frank Pietro, City Manager
City of Atwater
750 Bellevue Road
Atwater, CA 95301

ADMINISTRATIVE CONTINUATION OF ORDER R5-2011-0082 (NPDES PERMIT NO. CA0085308), CITY OF ATWATER, ATWATER REGIONAL WASTEWATER TREATMENT FACILITY, MERCED COUNTY

This letter authorizes the administrative continuation of Waste Discharge Requirements Order R5-2011-0082, National Pollutant Discharge Elimination System Permit CA0085308, as issued to the Atwater Regional Wastewater Treatment Facility (Facility). Order R5-2011-0082 expires on 1 January 2017. Order R5-2011-0082 permits the discharge of treated wastewater from the Facility to the Peck/Atwater Drain, a water of the United States. On 29 June 2016, the Central Valley Regional Water Quality Control Board (Central Valley Water Board) received an application from the City of Atwater to renew the Facility's permit. We reviewed the application and found it to be complete. However, we may request clarifying information at a later date.

Order R5-2011-0082 is hereby continued pursuant to Title 40, Code of Federal Regulations, section 122.6 and Title 23, California Code of Regulations, section 2235.4. The permit will remain in force, fully effective, and enforceable. This continuation is based upon the fact that the City of Atwater submitted a timely application for renewal of the permit and the City of Atwater's commitment to operate the Facility in compliance with the terms and conditions of Order R5-2011-0082. This continuation is conditional upon payment of appropriate fees and observance of the terms and conditions of Order R5-2011-0082.

As previously discussed with Facility staff, Central Valley Water Board staff considers the Facility a good candidate for enrollment under a proposed new general order for municipal wastewater discharges. Staff is currently working on general waste discharge requirements for municipal wastewater dischargers that meet objectives/criteria at the point of discharge to surface water. Based on our preliminary review, the Facility appears to be eligible for enrollment under the proposed general order. More information about the proposed general order can be found on our website at the link provided below. We will notify the City of Atwater when the tentative draft of the general order is posted for public comment.

http://www.waterboards.ca.gov/centralvalley/water_issues/waste_to_surface_water/hot_topics/

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If you have any questions regarding this matter, please contact Alexander Mushegan at (559) 488-4397 or at Alexander.Mushegan@waterboards.ca.gov.

Clay L. Rodgers

for Pamela C. Creedon
Executive Officer

cc: David Smith, USEPA Region IX, WTR-5, San Francisco
Peter Kozelka, USEPA Region IX, WTR-5, San Francisco (via email)
Phil Isorena, State Water Resources Control Board, Sacramento (via email)
Steven Pound, Veolia Water NA, Atwater, CA 95301 (via email)